

STATE OF INDIANA)
) SS: IN THE VANDERBURGH CIRCUIT COURT
COUNTY OF VANDERBURGH)

JEREMY MICHAEL TUDELA, ABBEY TUDELA AND 82C01-2311-CT-005876
JEREMY MICHAEL TUDELA ON BEHALF
OF HIS THREE MINOR CHILDREN,
M.T., L.T. AND C.T.)

Plaintiffs,)

v.)

CAUSE NO. 82C01-____-CT-____)

STATE OF INDIANA, VANDERBURGH COUNTY PROSECUTOR'S
OFFICE, VANDERBURGH COUNTY, FORMER
PROSECUTOR NICHOLAS HERMANN IN HIS
INDIVIDUAL AND OFFICAL CAPACITY,
THE CITY OF EVANSVIILE,
DETECTIVE ROB WALLER IN HIS INDIVIDUAL CAPACITY,
AND OFFICIAL CAPACITY, INDIANA
DEPARTMENT OF CHILD SERVICES, WHITNEY SAINT TUDELA,
MICHELLE NEFF, WARD NEFF, JESSICA FAIRCHILD, AND JASON KING
IN HIS INDIVIDUAL CAPACITY AND IN HIS
OFFICIAL CAPACITY AS A THERAPIST OF PLAYUL
HEALING AND COUNSELING.

Defendants.)

COMPLAINT AND DEMAND FOR JURY TRIAL

1. The Plaintiffs, Jeremy Michael Tudela ("Tudela"), his wife Abbey Tudela ("Abbey"), and Jeremy Tudela's three minor children M.T., L.T. and C.T., brings this action against the Defendants, the State of Indiana, the Vanderburgh County Prosecutor's Office ("VCPO"), Vanderburgh County ("County"), former Prosecutor Nicholas Hermann ("Hermann") in his individual and official capacity the City of Evansville ("Evansville"), Indiana Department of Child Services, Detective Rob Waller ("Waller") in his official and individual capacity, Jason King ("King") in his official capacity as a Therapist for Playful Healing and Counseling, Jessica

Fairchild (“Fairchild”), Whitney Saint Tudela (“Saint”), Michelle Neff (“Neff”) and Ward Neff (“Neff”) alleging violations of Indiana State law and Federal Constitutional Law.

PARTIES

2. Tudela is a United States Citizen and Resident of the State of Indiana – Vanderburgh County and is the Father of the three minor children, M.T., L.T. and C.T., who also reside in Vanderburgh County.

3. Abbey Tudela is a resident of Vanderburgh County.

4. Vanderburgh County is a governmental entity.

5. The Vanderburgh County Prosecutor’s Office is a governmental entity.

6. The State of Indiana is a governmental entity.

7. Nicholas Hermann was the Vanderburgh County Prosecutor during the relevant time frame.

8. Hall was a Vanderburgh County Deputy Prosecutor during the relevant time frame.

9. The City of Evansville is a governmental entity.

10. The Indiana Department of Child Services is a governmental entity.

11. Rob Waller was a Detective with the Evansville Police Department (“EPD”) during the relevant time frame.

12. Whitney Saint Tudela is an individual who resides within Vanderburgh County.

13. Michelle Neff is an individual who resides within Vanderburgh County.

14. Ward Neff is an individual who resided within Vanderburgh County.

15. Jessica Fairchild is an individual who resides in Vanderburgh County.

16. Jason King is an individual who resides in Vanderburgh County and is employed by Playful Healing and Counseling.

JURISDICTION AND VENUE

17. The Plaintiffs' claims against all the Defendant's arise from the same common nucleus of operative facts and form a single case and controversy.

18. Tudela timely filed his Notice of Tort Claim against the Defendants and all responsive waiting periods have expired.

19. All events alleged in the Complaint occurred within Vanderburgh County, Indiana.

20. Pursuant to Indiana Trial Rule 75 venue is proper in this Court.

FACTUAL ALLEGATIONS

21. Tudela and his former wife, Saint, have three (3) minor children: M.T., age 5, L. T., age 8, and C.T., age 9.

22. Tudela and Saint agreed in their Mediated Decree of Dissolution that the parties would have modified joint legal custody with Saint having primary physical custody and with Tudela's parenting time being phased in.

23. Tudela agreed to undergo psychological testing to prove that he was not a risk of danger to the children. He completed this testing and it was satisfactory.

24. Tudela had approximately sixteen (16) parenting time sessions at the Parenting Time Center and all the parenting time reports were highly favorable. Tudela's supervised parenting time was then expanded and ultimately ordered supervised by Mike Jones ("Jones").

25. Jones supervised four (4) visits and all of Jones' reports were highly favorable for Tudela.

26. Saint falsely reported that Tudela might cause harm to the parties' three (3) minor children, falsely expressed concern that one or more of the children desired too much physical affection from Tudela, and falsely reported that one of the children had accidentally touched Tudela's groin and that she believed that it was being sexual.

27. The children's therapist was concerned that one of the children might have a urinary tract infection and reported this to the maternal grandmother, Michelle Neff, who transported the child.

28. Neff responded with numerous false allegations of a sexual nature against Tudela prompting the therapist to make a Department of Child Services ("DCS") report which was immediately screened out.

29. Saint falsely accused Tudela of intentionally going behind an inflatable with one or more of the children and stated that the Tudela was a master manipulator. Saint also complained about Tudela allowing one or more of the children to sit on his lap "even facing him." Saint filed a false report with DCS, and it was immediately screened out.

30. Saint filed a petition to modify to further restrict Tudela's supervised parenting time alleging that "the Mother has begun noticing suspicious activities by the Father with the parties' middle child, " which makes the Mother uncomfortable." In said petition, Saint makes specific false allegations with sexual innuendos against Tudela.

31. Saint complained that Tudela was too affectionate and "too handsy" with one or more of the parties' minor children. Saint falsely reported that the Tudela had repeatedly raped a fifteen (15) year old girl and that he had begun "grooming" one or more of the parties' children.

32. Saint falsely claimed that one of the children expressed to her that Tudela touched them inappropriately. The allegation was that it occurred during the children's last visit with their

father at Bob Walther's Golf and Fun. Allegedly the incident occurred right in front of the Parenting Time Supervisor, Mike Jones. The allegation was that at some point, Tudela's hand came into contact with the child's rear on the outside of the clothing while sitting on his lap having pizza.

33. Saint took further steps to initiate a criminal complaint against Tudela, including a forensic interview of the child.

34. Saint repeatedly contacted the investigating officer, Detective Waller, expressing frustration that Tudela had not been arrested.

35. Detective Waller failed to conduct any type of reasonable investigation to ascertain whether a criminal act had occurred.

36. Tudela voluntarily gave a statement to law enforcement.

37. During the interview, Tudela vehemently denied thirty-four (34) separate times that he never touched or would never touch any of his children inappropriately, requested a polygraph exam three (3) times, asked Detective Waller, to speak to the parenting time supervisor, and asked Detective Waller speak to his family law attorney, Mark Miller, concerning the history of parental alienation and attempts by Saint to deprive him of his parenting time.

38. Detective Waller declined all of Tudela's requests and arrested him for Child Molesting, a level 4 felony on December 1, 2021.

39. Detective Waller falsely testified that the forensic interviewer knew nothing about the case prior to the interview with the child explaining that this is One Hundred Percent (100%) protocol.

40. Detective Waller provided false/misleading testimony that the other child, C.T., said he wasn't sure if he saw anything. C.T. was asked no questions related to the incident at Bob Walther's Golf and Fun.

41. Detective Waller failed and refused to speak to an eyewitness, the Parenting Time Supervisor Mike Jones and also testified that if he had spoken to him, it would have "absolutely not" changed his mind about arresting Tudela.

42. Detective Waller failed and refused to contact the Parenting Time Center or Mike Jones about prior visitations with Tudela to determine whether anything inappropriate/appropriate occurred previously.

43. Detective Waller falsely testified twice that the child in question claimed Tudela had "grabbed her in her no-no spot."

44. Detective Waller falsely testified that it is not at all uncommon for something like this (child molestation) to occur in front of a parenting time supervisor.

45. Deputy Prosecutor Hall failed and refused to contact the eyewitness, Parenting Time Supervisor Mike Jones, about what he may have witnessed.

46. Deputy Prosecutor Hall falsely stated that during closing arguments that Parenting Time Supervisor, Mike Jones had a reason to lie — if word got out that a child was molested under his watch, he would lose a lot of business.

47. Deputy Prosecutor Hall falsely stated in her closing argument that Jason King of Playful Healing and Counseling didn't get paid to be in court.

48. Deputy Prosecutor Hall stated to the jury that if people didn't molest children, she would be out of a job, and stated in closing arguments, "I am asking you to find him guilty, because he is a child molester."

49. Vanderburgh County Deputy Prosecutor Emily Hall repeatedly represented that the prosecutor's office would be calling an expert to testify at trial. They failed to do so and falsely stated to the jury that it was because the prosecutor's office does not pay witnesses to testify.

50. On April 1, 2022, the jury quickly returned a verdict of Not Guilty in the criminal matter against Tudela.

51. As a result of the false allegations made against Tudela, he spent 126 days in the Vanderburgh County Jail.

52. Prosecuting Attorney Nicholas Hermann has failed to properly train, establish policies, and discipline deputy prosecuting attorneys. Moreover, Prosecuting Attorney Nicholas Hermann has permitted a culture of unethical conduct to occur within the prosecutor's office.

53. Tudela and his family were refused service by a server, Jessica Fairchild, at a restaurant they own. The server attempted to get all the other employees to walkout of the establishment claiming that Tudela was a "pedophile and a rapist." The server stated that she and Deputy Prosecutor Hall were best friends and therefore she knew this to be true.

54. Saint continues to claim that the child was traumatized from being molested by Tudela.

55. Since the not guilty verdict, the maternal grandmother, Michelle Neff, has, among other things, falsely posted on social media that Tudela is a habitual sex offender and has committed the crime of child molesting.

56. Michelle Neff continues to make false and defamatory comments about Tudela including but not limited to recently attending a lunch group and repeatedly stating that "Tudela is a rapist".

57. Ward Neff conspired with Whitney Tudela and Michelle Neff to create false allegations to the Department of Child Services and Law Enforcement against Tudela and throughout the criminal proceedings encouraged prosecution of Tudela.

58. Moreover, it was disclosed by Saint that Ward Neff was desirous of attempting to adopt Tudela's three minor children.

59. Had Tudela been convicted, he would have received a lengthy prison sentence making it highly likely that Ward Neff would be able to adopt Tudela's three minor children.

60. According to EPD Detective Rob Waller, he spoke to the children's therapist, Jason King, with Playful Healing and Counseling for approximately 45 minutes to an hour prior to deciding to arrest the Tudela, implying that Jason King provided incriminating information against Tudela.

61. Indiana Department of Child Services failed to conduct an of independent investigation prior to substantiating an allegation of child molestation against the Tudela.

62. Jason King of Playful Healing and Counseling wrongfully filed a false DCS report against Tudela. Jason King incorrectly reported that the child, who at that time was five (5) years of age, was very strong willed and not capable of being coached.

63. Jason King of Playful Healing and Counseling falsely reported that he had started seeing "red flags".

64. At no time did Jason King of Playful Healing and Counseling ever attempt to contact Tudela to inquire about any of his concerns.

65. Jason King of Playful Healing and Counseling testified when asked "has [L.T.] reported she was touched in anyway she did not like?" that "Yes, by her father" falsely implying that Tudela had molested his daughter.

66. Jason King of Playful Healing and Counseling made repeated efforts to prevent Tudela from obtaining therapy records to prove his innocence even though Tudela had joint legal custody of his children and was fully entitled to said records pursuant to Indiana law.

67. The Indiana Department of Child Services failed to conduct an independent investigation prior to substantiating an allegation of child molestation against Tudela resulting in the loss of Tudela's parenting time with M.T., L.T and C.T.

68. Tudela, his Wife and Tudela's three (3) minor children have been devastated and severely harmed by the actions of the Defendants.

69. As a result of the Defendants' actions Abbey Tudela suffered severe mental and emotional distress and the love and affection and support of Tudela.

70. M.T., L.T. and C.T. suffered severe mental and emotional distress as a result of Tudela's incarceration, their separation from their Father, and the loss of his love and affection and support.

**COUNT I: VIOLATIONS OF FOURTH AND FOURTEENTH AMENDMENTS -FALSE
ARREST**

71. The Plaintiffs hereby incorporate paragraphs one (1) through seventy (70) of his Complaint.

72. The City of Evansville and Waller, acting within the scope of his employment and acting under the color of state law, violated Tudela's rights as protected by the Fourth and Fourteenth Amendments of the United States Constitution by falsely arresting and/or falsely imprisoning Tudela.

73. Waller's actions were reckless, intentional, malicious and in bad faith, with deliberate indifference to Tudela's Constitutional Rights as protected by 42 USC Section 1983.

COUNT II: MALICIOUS PROSECUTION

74. The Plaintiffs hereby incorporate paragraphs one (1) through seventy-three (73) of his Complaint.

75. The Vanderburgh County's Prosecutor's Office, Vanderburgh County, the State of Indiana, and Nicholas Hermann's actions were reckless, intentional, malicious and in bad faith, with deliberate indifference to Tudela's Rights.

COUNT III: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

76. Tudela hereby incorporates paragraphs one (1) through seventy-five (75) of his Complaint.

77. The actions taken by the Defendants were done with malicious intent to cause severe mental and emotional distress to Tudela, his Wife Abbey and Tudela's three (3) minor children M.T., L.T. and C.T.

78. As a result of the actions taken by the Defendants', Tudela, his Wife Abbey and Tudela's three (3) minor children M.T., L.T. and C.T have suffered and continue to suffer severe mental anguish and emotional distress.

COUNT IV: INDIANA LAW – FALSE ARREST

79. The Plaintiffs hereby incorporates paragraphs one (1) through seventy-eight (78) of his Complaint.

80. The City of Evansville and Waller are liable to Tudela for his wrongful conduct within the scope of his employment and when working in furtherance of the Evansville Police Department at the time of the conduct.

81. The City of Evansville and Waller violated Indiana law by falsely arresting and/or falsely imprisoning Tudela.

82. Tudela has suffered damages as a result.

83. The individual acts of Waller are deemed to be acts of the employer under the employer respondeats superior.

84. Waller and the City of Evansville are jointly and severally liable for the injuries received by Tudela, his Wife Abbey and Tudela's three (3) minor children M.T., L.T. and C.T.

COUNT V - DEFAMATION

85. The Plaintiffs incorporate the Factual Allegations set forth in paragraphs one (1) through eighty-four (84) of his complaint.

86. The Defendants made false and defamatory statements about Tudela, causing him to be wrongfully incarcerated, causing him to be separated from his Wife and minor children and causing his reputation to be tarnished throughout the community.

87. Tudela has suffered damages as a result of the Defendants' defamatory actions.

COUNT VI: INDIANA LAW – NEGLIGENT HIRING, TRAINING AND SUPERVISION

88. Tudela hereby incorporates paragraphs one (1) through eighty-seven (87) of his Complaint.

89. Vanderburgh County, Vanderburgh County's Prosecutor's Office, and former Prosecutor Nicholas Hermann negligently hired, trained and supervised members of the Vanderburgh County Prosecutor's Office that caused harm to Tudela.

90. Tudela, his Wife Abbey Tudela and Tudela's three (3) minor children have suffered damages as a result.

91. The individual acts of the employees of the Vanderburgh County Prosecutor's Office are deemed to be acts of the employer under the principle of *respondeat superior*.

92. Vanderburgh County, Vanderburgh County's Prosecutor's Office and former Prosecutor Nicholas Hermann are joint and severally liable for the damages received by Tudela, his Wife Abbey Tudela and Tudela's three (3) minor children M.T., L.T. and C.T.

REQUESTED RELIEF

WHEREFORE, Plaintiffs, Jeremy Michael Tudela, his Wife Abbey Tudela and Jeremy Michael Tudela's three (3) minor children M.T., L.T. and C.T, by counsel, respectfully requests that this Court find for the Plaintiff's and order that the Defendants:

93. Pay to Plaintiffs compensatory, exemplary and punitive damages;

94. Award actual damages to Plaintiff Tudela to adequately compensate his for his injuries – including but not limited to his attorney fees for defending against the criminal charges that were a result of the Defendants actions and for loss of job income while incarcerated;

95. Award each of the Plaintiffs damages for severe mental and emotional distress as well as loss of love and affection and support;

96. To declare the conduct and practices of the Defendants unlawful and to enjoin them from similar conduct;

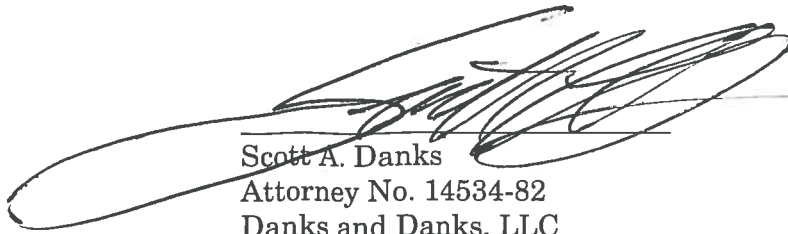
97. Pay to Plaintiffs consequential damages;

98. Pay to Plaintiffs pre- and post-judgment interest;

99. Pay to Plaintiffs costs and attorney fees incurred in litigating this action; and,

100. Pay to Plaintiffs any and all other legal and/or equitable damages this Court sees fit to grant.

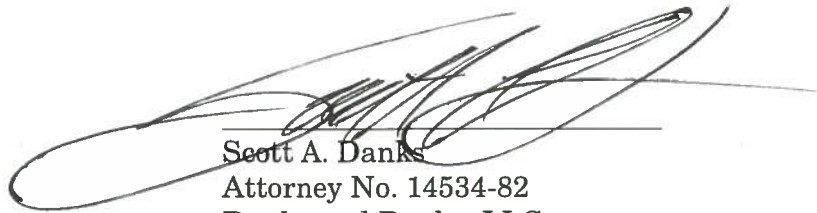
Respectfully submitted,



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DEMAND FOR JURY TRIAL

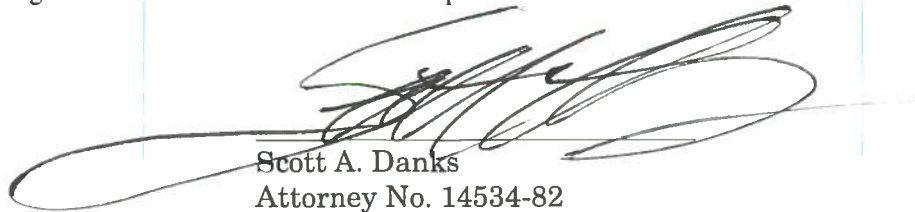
The Plaintiff's, by counsel, respectfully requests a jury trial as to all issues deemed so triable.



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CERTIFICATION OF TRIAL RULE 5 (G) COMPLIANCE

I hereby certify that the foregoing or attached Court Record or document complies with the requirements of Trial Rule 5 (G) with regard to information excluded from the public record under the Indiana Rules on Access to Court Records.



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